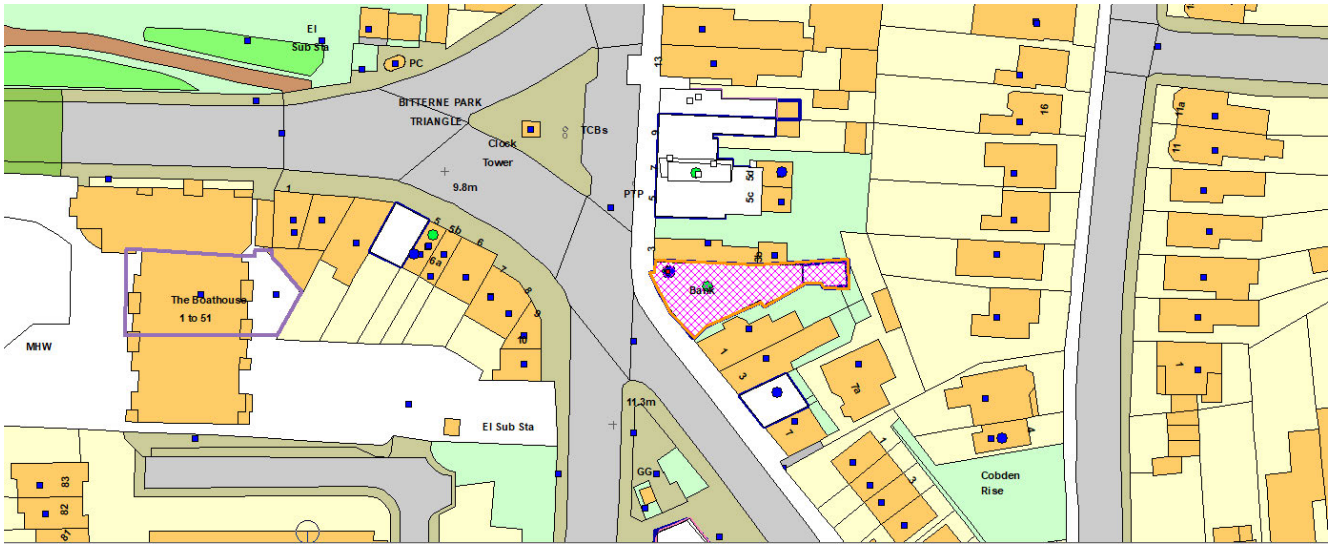
DECISION-MAKER	**LICENSING (LICENSING & GAMBLING) SUB COMMITTEE**
SUBJECT	HEARING TO CONSIDER AN APPLICATION FOR GRANT OF A PREMISES LICENCE – **Persian Cultural Centre 1 Manor Farm Road Bitterne Southampton**
DATE OF HEARING	**28th April 2021 1600 hrs**
REPORT OF	**SERVICE DIRECTOR** – COMMUNITIES,CULTURE AND HOMES
E-mail	licensing@southampton.gov.uk

Application Date :	12th March 2021	Application Received	12th March 2021
Application Valid :	12th March 2021	Reference :	**2021/00707/01SPRN**



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Representations from Responsible Authorities

Responsible Authority	Satisfactory?
Safeguarding Children	Satisfactory
Fire Service	Satisfactory
Environmental Health - Licensing	Satisfactory
Home Office	No Response

Building Control	No Response
Public Health Manager	No Response
Police - Licensing	Pre-agreed Conditions
Trading Standards	No Response

Other Representations		
Name	**Address**	**Contributor Type**
Mr. Tim Muckart	16 St Catherines Road Southampton SO18 1LJ	**Resident**
Ms Marie Batt-Delannoy	12 St Catherines Road Southampton SO18 1LJ	**Resident**
Ms. Joanne Cowling	8 St Catherines Road Southampton SO18 1LJ	**Resident**

Legal Implications

The legislation specifically restricts the grounds on which the sub-committee may refuse an applicati for grant of a premises licence or impose conditions. The legislation provides for a presumption of grant of an application for a premises licence, subject to the determination of the application with a view to promoting the licensing objectives in the overall interests of the local community. In doing so the sub-committee must give appropriate weight to:

- the steps that are appropriate to promote the licensing objectives;
- the representations (including supporting information) presented by all the parties;

- its own statement of licensing policy
- the Statutory Guidance

An application may be refused in part and thereby only permit some of the licensable activities sought.

An applicant for grant of a premises licence whose application has been refused, or who is aggrieved by conditions imposed, may appeal against the decision to the Magistrates' Court. Any other person, who made a valid representation, may appeal to the Magistrates' Court against the decision to grant the application or against any conditions imposed.

In considering this application the sub-committee is obliged to consider the application in accordance, in particular, with both the Licensing Act 2003(Hearings) Regulations 2005 (as amended) and the rules of natural justice

The practical effect of this is that the sub-committee must makes its decision based on evidence submitted in accordance with the legislation and give adequate reasons for reaching its decision.

Only persons that made relevant representations or their representative, within the time limits, will be allowed to present evidence and this will be restricted to the points raised in their written representation. Any evidence used to expand upon specific points already raised in a written representation should be served upon all parties in good time before the hearing date in order to allow proper consideration. A failure to properly serve any such additional evidence in advance is likely to mean it cannot be produced or relied up at the hearing.

The sub-committee must also have regard to:

- *The Crime and Disorder Act 1998*
  Section 17 of the Crime and Disorder Act 1998 places the sub-committee under a duty to exercise its various functions with due regard to the likely effect of the exercise of those functions on, and the need to do all that it reasonably can to prevent, crime and disorder in its area.
- *The Human Rights Act 1998*
  The Act requires UK legislation to be interpreted in a manner consistent with the European Convention on Human Rights. It is unlawful for the sub-committee to act in a way that is incompatible (or fail to act in a way that is compatible) with the rights protected by the Act. Any action undertaken by the sub-committee that could have an effect upon another person's Human Rights must be taken having regard to the principle of proportionality - the need to balance the rights of the individual with the rights of the community as a whole. Any action taken by the sub-committee which affect another's rights must be no more onerous than is necessary in a democratic society. The matters set out in this report must be considered in light of the above obligations.

Copies of the application for grant of a premises licence and the representations to it are annexed to this report.

Equality Act 2010

Section 149 of the Equality Act 2010 requires the Council to have due regard to the need to eliminate discrimination, harassment, victimisation and any other conduct that is prohibited by or under this Act. It also requires the Council to advance equality of opportunity and foster good relations between persons who share a relevant protected characteristic and persons who do not share it. This means having due regard to the need to removing or minimising disadvantages suffered, taking steps to meet the needs of persons, encouraging persons to participate in public life, tackling prejudice and promoting understanding. The relevant protected characteristics are: age; disability; gender reassignment; pregnancy and maternity; race; religion or belief; sex; sexual orientation.

SUMMARY

The premises in this application is intended to be used as a Local Community Centre and will be run by an Unincorporated Association which is in the process of being set up at the same time as this application.

Applicant	*Persian Cultural Centre*
Designated Premises Supervisor	

Licensable Activities.

Plays

Monday	10:00 - 23:00
Tuesday	10:00 - 23:00
Wednesday	10:00 - 23:00
Thursday	10:00 - 23:00
Friday	10:00 - 23:00
Saturday	10:00 - 23:00
Sunday	10:00 - 23:00

Films

Monday	10:00 - 23:00
Tuesday	10:00 - 23:00
Wednesday	10:00 - 23:00
Thursday	10:00 - 23:00
Friday	10:00 - 23:00
Saturday	10:00 - 23:00
Sunday	10:00 - 23:00

Live music

Monday	10:00 - 23:00
Tuesday	10:00 - 23:00
Wednesday	10:00 - 23:00
Thursday	10:00 - 23:00
Friday	10:00 - 23:00
Saturday	10:00 - 23:00
Sunday	10:00 - 23:00

Recorded music

Monday	10:00 - 23:00
Tuesday	10:00 - 23:00
Wednesday	10:00 - 23:00
Thursday	10:00 - 23:00
Friday	10:00 - 23:00
Saturday	10:00 - 23:00
Sunday	10:00 - 23:00

Performances of dance

Monday	10:00 - 23:00
Tuesday	10:00 - 23:00
Wednesday	10:00 - 23:00
Thursday	10:00 - 23:00
Friday	10:00 - 23:00
Saturday	10:00 - 23:00
Sunday	10:00 - 23:00

Anything similar to live music, recorded music or performances of dance

Monday	10:00 - 23:00
Tuesday	10:00 - 23:00
Wednesday	10:00 - 23:00
Thursday	10:00 - 23:00
Friday	10:00 - 23:00
Saturday	10:00 - 23:00
Sunday	10:00 - 23:00

Provision of late night refreshment

Monday	23:00 - 23:30
Tuesday	23:00 - 23:30
Wednesday	23:00 - 23:30
Thursday	23:00 - 23:30
Friday	23:00 - 23:30
Saturday	23:00 - 23:30
Sunday	23:00 - 23:30

Supply by retail of alcohol

Monday	11:00 - 23:30
Tuesday	11:00 - 23:30
Wednesday	11:00 - 23:30
Thursday	11:00 - 23:30
Friday	11:00 - 23:30
Saturday	11:00 - 23:30
Sunday	11:00 - 23:30

Conditions consistent with the operating Schedule

SIA

The premises licence holder shall ensure that all public and private events or functions are subject to a written Risk Assessment in relation to security requirements that shall include the date, times, size and nature of the event, the assessment of risk and the measures put in place to address any identified risks. All Risk Assessments shall be documented and retained for a minimum of 1 year and shall be made available for inspection by Police and Council officials upon request.

CCTV
A colour recording CCTV system that captures images from the main public areas must be fully operational whilst licensable activities are taking place.
The system shall be able to cope with all levels of illumination.
The recording equipment shall be stored and operated in a secure environment with limited access, to avoid damage, theft, unauthorised viewing and maintain the integrity of the system. The system shall be serviced at twelve monthly intervals and maintained to a standard that is acceptable to the police licensing department responsible for the area
The system clock shall be checked regularly for accuracy taking account of GMT and BST Digital systems shall have sufficient storage capacity for 28 days evidential quality recordings
(minimum 4 frames per second).
The images produced shall be date and time stamped.
A notice shall be displayed at the entrance to the premises advising that CCTV is in operation. An additional recording CCTV camera shall be installed and fully operational whilst the venue is open to the public to cover the area immediately outside the front of the premises.
It is important that the Police are able to access data from the systems quickly and easily and therefore provision shall be made that at all times a person is in attendance who is nominated by the data controller who has access to the secure area who is able to operate the equipment Ensure all operators receive training from the installer when equipment is installed and that this is cascaded down to new members of nominated staff.
Have a simple operator's manual available to assist in replaying and exporting data (particularly important with digital systems) and to produce images to the police responsible authority for the purpose of the prevention and detection of crime as long as the request is lawful and complies with the GDPR
In the event of a technical failure of the CCTV equipment, the premises licence holder or DPS shall notify the police licensing department responsible for the area within 24 hours.
The Premises Licence Holder will ensure that a CCTV system is fully compliant with the guidance contained in the Information Commissioner's Office (CO) guidance document (www.intonnationcommissione1:gov.uk/ regarding installation of CCTV is provided at the premises.

Challenge 25
The premises licence holder shall ensure that a system is in place to ensure that every individual who appears to be under 25 years of age seeking to purchase or be supplied with alcohol at or
from the premises, shall produce acceptable means of identification and age confirmation.
Acceptable identification shall be a passport, photo driving licence or PASS accredited photo ID. If the person seeking alcohol is unable to produce acceptable means of identification, no sale or
supply of alcohol will be made to or for that person.

Incident Book
An incident book shall be maintained to record any activity of a violent, criminal or anti-social
nature.
The record will contain the time and date, the nature of the incident, the people involved, the
action taken and details of the person responsible for the management of the premises at the time of the incident. This record shall be produced to a police officer or an authorised officer of the local authority on reasonable request. This record shell be retained for a period of 12 months.

Refusals Book
A written log shall be kept of all refusals including refusals to sell alcohol. The Premises Licence Holder shall ensure that the refusals log is checked, signed and dated on a weekly basis by the
venue manager/manageress. The refusals log will be kept and maintained at the premises and will be available for inspection immediately upon request by Hampshire Constabulary and any
responsible authority. The record of refusals will be retained for 12 months.

Hampshire Constabulary have agreed conditions with the applicant prior to submitting the application and we have had no objections from the responsible authorities.

There are three Public Representations

Included in Report

Application

Plan

Operating Schedule

Confirmation of Police agreed conditions

3 Public Representations

Hearing Procedure

Insert name and address of relevant licensing authority and its reference number (optional)

Application for a premises licence to be granted under the Licensing Act 2003

PLEASE READ THE FOLLOWING INSTRUCTIONS FIRST

Before completing this form please read the guidance notes at the end of the form. If you are completing this form by hand please write legibly in block capitals. In all cases ensure that your answers are inside the boxes and written in black ink. Use additional sheets if necessary.

You may wish to keep a copy of the completed form for your records.

I/We Persian Cultural Centre
(Insert name(s) of applicant)

apply for a premises licence under section 17 of the Licensing Act 2003 for the premises described in Part 1 below (the premises) and I/we are making this application to you as the relevant licensing authority in accordance with section 12 of the Licensing Act 2003

Part 1 - Premises details

Postal address of premises or, if none, ordnance survey map reference or description 1 Manor Farm Road Bitterne	
Post town Southampton	Postcode SO18 1NN
Telephone number at premises (if any)	
Non-domestic rateable value of premises	£ 12,500.00

Part 2 - Applicant details

Please state whether you are applying for a premises licence as		Please tick as appropriate	
a)	an individual or individuals*	☐	please complete section (A)
b)	a person other than an individual*		
	i as a limited company/limited liability partnership	☐	please complete section (B)
	ii as a partnership (other than limited liability)	☐	please complete section (B)
	iii as an unincorporated association or	☑	please complete section (B)
	iv other (for example a statutory corporation)	☐	please complete section (B)
c)	a recognised club	☐	please complete section (B)
d)	a charity	☐	please complete section (B)

e)	the proprietor of an educational establishment	☐ please complete section (B)
f)	a health service body	☐ please complete section (B)
g)	a person who is registered under Part 2 of the Care Standards Act 2000 (c14) in respect of an independent hospital in Wales	☐ please complete section (B)
ga)	a person who is registered under Chapter 2 of Part 1 of the Health and Social Care Act 2008 (within the meaning of that Part) in an independent hospital in England	☐ please complete section (B)
h)	the chief officer of police of a police force in England and Wales	☐ please complete section (B)

*If you are applying as a person described in (a) or (b) please confirm (by ticking yes to one box below):

- I am carrying on or proposing to carry on a business which involves the use of the premises for licensable activities; or ☐
- I am making the application pursuant to a
  - statutory function or ☐
  - a function discharged by virtue of Her Majesty's prerogative ☐

(A) INDIVIDUAL APPLICANTS (fill in as applicable)

Mr ☐	Mrs ☐	Miss ☐	Ms ☐	Other Title (for example, Rev)	
Surname			First names		
Date of birth		I am 18 years old or over ☐		Please tick yes	
Nationality					
Current residential address if different from premises address					
Post town				Postcode	
Daytime contact telephone number					
E-mail address (optional)					
Where applicable (if demonstrating a right to work via the Home Office online right to work checking service), the 9-digit 'share code' provided to the applicant by that service (please see note 15 for information)					

SECOND INDIVIDUAL APPLICANT (if applicable)

Mr ☐	Mrs ☐	Miss ☐	Ms ☐	Other Title (for example, Rev)	
Surname			First names		
Date of birth		I am 18 years old or over ☐		Please tick yes	
Nationality					
Current residential address if different from premises address					
Post town				Postcode	
Daytime contact telephone number					
E-mail address (optional)					
Where applicable (if demonstrating a right to work via the Home Office online right to work checking service), the 9-digit 'share code' provided to the applicant by that service (please see note 15 for information)					

(B) OTHER APPLICANTS

Please provide name and registered address of applicant in full. Where appropriate please give any registered number. In the case of a partnership or other joint venture (other than a body corporate), please give the name and address of each party concerned.

Name Persian Cultural Centre
Address 1 Manor Farm Road Bitterne Southampton SO18 1NN
Registered number (where applicable)
Description of applicant (for example, partnership, company, unincorporated association etc.) unicorporated association
Telephone number (if any)
E-mail address (optional)

Part 3 - Operating Schedule

When do you want the premises licence to start?

DD	MM	YYYY
2 1	0 3	2 0 2 1

If you wish the licence to be valid only for a limited period, when do you want it to end?

DD	MM	YYYY

Please give a general description of the premises (please read guidance note 1)

The Premises are a converted building with a stage and seating area and a bar area to allow meetings and the provision of food and drink

If 5,000 or more people are expected to attend the premises at any one time, please state the number expected to attend.

What licensable activities do you intend to carry on from the premises?

(please see sections 1 and 14 and Schedules 1 and 2 to the Licensing Act 2003)

Please tick all that apply

Provision of regulated entertainment (please read guidance note 2)

a)	plays (if ticking yes, fill in box A)	☑
b)	films (if ticking yes, fill in box B)	☑
c)	indoor sporting events (if ticking yes, fill in box C)	☐
d)	boxing or wrestling entertainment (if ticking yes, fill in box D)	☐
e)	live music (if ticking yes, fill in box E)	☑
f)	recorded music (if ticking yes, fill in box F)	☑
g)	performances of dance (if ticking yes, fill in box G)	☑
h)	anything of a similar description to that falling within (e), (f) or (g) (if ticking yes, fill in box H)	☑

Provision of late night refreshment (if ticking yes, fill in box I) ☑

Supply of alcohol (if ticking yes, fill in box J) ☑

In all cases complete boxes K, L and M

A

Plays Standard days and timings (please read guidance note 7)			**Will the performance of a play take place indoors or outdoors or both - please tick** (please read guidance note 3)		
Day	Start	Finish		Indoors	✓
Mon	1000	2300		Outdoors	
				Both	
Tue	1000	2300	**Please give further details here** (please read guidance note 4)		
Wed	1000	2300	**State any seasonal variations for performing plays** (please read guidance note 5)		
Thur	1000	2300			
Fri	1000	2300	**Non standard timings. Where you intend to use the premises for the performance of plays at different times to those listed in the column on the left, please list** (please read guidance note 6)		
Sat	1000	2300			
Sun	1000	2300			

B

Films Standard days and timings (please read guidance note 7)			**Will the exhibition of films take place indoors or outdoors or both - please tick** (please read guidance note 3)		
Day	Start	Finish		Indoors	✓
Mon	1000	2300		Outdoors	
				Both	
Tue	1000	2300	**Please give further details here** (please read guidance note 4)		
Wed	1000	2300	**State any seasonal variations for the exhibition of films** (please read guidance note 5)		
Thur	1000	2300			
Fri	1000	2300	**Non standard timings. Where you intend to use the premises for the exhibition of films at different times to those listed in the column on the left, please list** (please read guidance note 6)		
Sat	1000	2300			
Sun	1000	2300			

C

Indoor sporting events Standard days and timings (please read guidance note 7)			**Please give further details** (please read guidance note 4)
Day	Start	Finish	
Mon			
Tue			**State any seasonal variations for indoor sporting events** (please read guidance note 5)
Wed			
Thur			**Non standard timings. Where you intend to use the premises for indoor sporting events at different times to those listed in the column on the left, please list** (please read guidance note 6)
Fri			
Sat			
Sun			

D

Boxing or wrestling entertainments Standard days and timings (please read guidance note 7)			**Will the boxing or wrestling entertainment take place indoors or outdoors or both - please tick** (please read guidance note 3)		
Day	Start	Finish		Indoors	☐
Mon				Outdoors	☐
Tue				Both	☐
Wed			**Please give further details here** (please read guidance note 4)		
Thur			**State any seasonal variations for boxing or wrestling entertainment** (please read guidance note 5)		
Fri					
Sat			**Non standard timings. Where you intend to use the premises for boxing or wrestling entertainment at different times to those listed in the column on the left, please list** (please read guidance note 6)		
Sun					

E

Live music Standard days and timings (please read guidance note 7)			**Will the performance of live music take place indoors or outdoors or both - please tick** (please read guidance note 3)		
Day	Start	Finish		Indoors	✓
Mon	1000	2300		Outdoors	
				Both	
Tue	1000	2300	**Please give further details here** (please read guidance note 4)		
Wed	1000	2300	**State any seasonal variations for the performance of live music** (please read guidance note 5)		
Thur	1000	2300			
Fri	1000	2300	**Non standard timings. Where you intend to use the premises for the performance of live music at different times to those listed in the column on the left, please list** (please read guidance note 6)		
Sat	1000	2300			
Sun	1000	2300			

F

Recorded music Standard days and timings (please read guidance note 7)			**Will the playing of recorded music take place indoors or outdoors or both - please tick** (please read guidance note 3)		
Day	Start	Finish		Indoors	✓
Mon	1000	2300		Outdoors	
				Both	
Tue	1000	2300	**Please give further details here** (please read guidance note 4)		
Wed	1000	2300	**State any seasonal variations for the playing of recorded music** (please read guidance note 5)		
Thur	1000	2300			
Fri	1000	2300	**Non standard timings. Where you intend to use the premises for the playing of recorded music at different times to those listed in the column on the left, please list** (please read guidance note 6)		
Sat	1000	2300			
Sun	1000	2300			

G

Performances of dance Standard days and timings (please read guidance note 7)			**Will the performance of dance take place indoors or outdoors or both - please tick** (please read guidance note 3)		
Day	Start	Finish		Indoors	✓
Mon	1000	2300		Outdoors	
				Both	
Tue	1000	2300	**Please give further details here** (please read guidance note 4)		
Wed	1000	2300	**State any seasonal variations for the performance of dance** (please read guidance note 5)		
Thur	1000	2300			
Fri	1000	2300	**Non standard timings. Where you intend to use the premises for the performance of dance at different times to those listed in the column on the left, please list** (please read guidance note 6)		
Sat	1000	2300			
Sun	1000	2300			

H

Anything of a similar description to that falling within (e), (f) or (g) Standard days and timings (please read guidance note 7)			**Please give a description of the type of entertainment you will be providing**		
Day	Start	Finish	**Will this entertainment take place indoors or outdoors or both - please tick** (please read guidance note 3)	Indoors	✓
Mon	1000	2300		Outdoors	
				Both	
Tue	1000	2300	**Please give further details here** (please read guidance note 4)		
Wed	1000	2300			
Thur	1000	2300	**State any seasonal variations for entertainment of a similar description to that falling within (e), (f) or (g)** (please read guidance note 5)		
Fri	1000	2300			
Sat	1000	2300	**Non standard timings. Where you intend to use the premises for the entertainment of a similar description to that falling within (e), (f) or (g) at different times to those listed in the column on the left, please list** (please read guidance note 6)		
Sun	1000	2300			

I

Late night refreshment Standard days and timings (please read guidance note 7)			**Will the provision of late night refreshment take place indoors or outdoors or both - please tick** (please read guidance note 3)		
				Indoors	✓
				Outdoors	
				Both	
Day	Start	Finish			
Mon	2300	2330	**Please give further details here** (please read guidance note 4)		
Tue	2300	2330			
Wed	2300	2330	**State any seasonal variations for the provision of late night refreshment** (please read guidance note 5)		
Thur	2300	2330			
Fri	2300	2330	**Non standard timings. Where you intend to use the premises for the provision of late night refreshment at different times, to those listed in the column on the left, please list** (please read guidance note 6)		
Sat	2300	2330			
Sun	2300	2330			

J

Supply of alcohol Standard days and timings (please read guidance note 7)			**Will the supply of alcohol be for consumption – please tick** (please read guidance note 8)		
				On the premises	✓
				Off the premises	
				Both	
Day	Start	Finish			
Mon	1100	2330	**State any seasonal variations for the supply of alcohol** (please read guidance note 5)		
Tue	1100	2330			
Wed	1100	2330			
Thur	1100	2330	**Non standard timings. Where you intend to use the premises for the supply of alcohol at different times to those listed in the column on the left, please list** (please read guidance note 6)		
Fri	1100	2330			
Sat	1100	2330			
Sun	1100	2330			

State the name and details of the individual whom you wish to specify on the licence as designated premises supervisor (Please see declaration about the entitlement to work in the checklist at the end of the form):

Name	
Date of birth	
Address	
Postcode	
Personal licence number (if known)	
Issuing licensing authority (if known)	

K

Please highlight any adult entertainment or services, activities, other entertainment or matters ancillary to the use of the premises that may give rise to concern in respect of children (please read guidance note 9).

It is not envisaged that there will be any other adult entertainment or services or activities that may give rise to concern in respect of children, the premises are intended to be a cultural centre for the Persian community in Southampton. Any events that may give rise, will be limited to over 16's only.

L

Hours premises are open to the public Standard days and timings (please read guidance note 7)			**State any seasonal variations** (please read guidance note 5)
Day	Start	Finish	
Mon	0930	2359	
Tue	0930	2359	
Wed	0930	2359	**Non standard timings. Where you intend the premises to be open to the public at different times from those listed in the column on the left, please list** (please read guidance note 6)
Thur	0930	2359	
Fri	0930	2359	
Sat	0930	2359	
Sun	0930	2359	

M

Describe the steps you intend to take to promote the four licensing objectives:

a) General - all four licensing objectives (b, c, d and e) (please read guidance note 10)

The premises are intended to be a cultural centre for the Persian community in Southampton, as such it is not envisaged that the persons attending the premises will be in large numbers accept for specific events. Where large numbers of persons are expected, additional steps will be taken by the management to ensure that persons are quiet on leaving the property. If necessary, door staff will be provided where larger numbers of persons are anticipated, and a CCTV system will be installed. Effectively the applicant will adopt the standard licensing conditions as set out by Southampton City Council along with the further conditions as set out by Hampshire Constabulary in their email dated 26/1/2021 appended to this application.

b) The prevention of crime and disorder

Please see part a) above and the operating schedule. It is not anticipated that there will be frequently large numbers of persons, and the property is intended to be utilised as a community centre.

c) Public safety

If and as where necessary suitable notices will be placed for the requirement to keep the noise down and for taxis to limit people. The numbers of those admitted to the premises, will be in accordance with the requirements of the Fire Brigade.

d) The prevention of public nuisance

If necessary, door staff will be provided, and there will be suitable notices for taxis requiring patrons to leave the premises quietly.

e) The protection of children from harm

No alcohol will be served to persons who do not meet the requirement for a Challenge 25 policy which will be in operation at the premises. Any events that may give rise to issues for children will be limited in terms of age, and ID will be required by the management of the premises for persons extending the same.

Checklist:

Please tick to indicate agreement

- I have made or enclosed payment of the fee. ☑
- I have enclosed the plan of the premises. ☑
- I have sent copies of this application and the plan to responsible authorities and others where applicable. ☑
- I have enclosed the consent form completed by the individual I wish to be designated premises supervisor, if applicable. ☐
- I understand that I must now advertise my application. ☑
- I understand that if I do not comply with the above requirements my application will be rejected. ☑
- [Applicable to all individual applicants, including those in a partnership which is not a limited liability partnership, but not companies or limited liability partnerships] I have included documents demonstrating my entitlement to work in the United Kingdom or my share code issued by the Home Office online right to work checking service (please read note 15). ☐

IT IS AN OFFENCE, UNDER SECTION 158 OF THE LICENSING ACT 2003, TO MAKE A FALSE STATEMENT IN OR IN CONNECTION WITH THIS APPLICATION. THOSE WHO MAKE A FALSE STATEMENT MAY BE LIABLE ON SUMMARY CONVICTION TO A FINE OF ANY AMOUNT.

IT IS AN OFFENCE UNDER SECTION 24B OF THE IMMIGRATION ACT 1971 FOR A PERSON TO WORK WHEN THEY KNOW, OR HAVE REASONABLE CAUSE TO BELIEVE, THAT THEY ARE DISQUALIFIED FROM DOING SO BY REASON OF THEIR IMMIGRATION STATUS. THOSE WHO EMPLOY AN ADULT WITHOUT LEAVE OR WHO IS SUBJECT TO CONDITIONS AS TO EMPLOYMENT WILL BE LIABLE TO A CIVIL PENALTY UNDER SECTION 15 OF THE IMMIGRATION, ASYLUM AND NATIONALITY ACT 2006 AND PURSUANT TO SECTION 21 OF THE SAME ACT, WILL BE COMMITTING AN OFFENCE WHERE THEY DO SO IN THE KNOWLEDGE, OR WITH REASONABLE CAUSE TO BELIEVE, THAT THE EMPLOYEE IS DISQUALIFIED.

Part 4 - Signatures (please read guidance note 11)

Signature of applicant or applicant's solicitor or other duly authorised agent (see guidance note 12). **If signing on behalf of the applicant, please state in what capacity.**

Declaration	• [Applicable to individual applicants only, including those in a partnership which is not a limited liability partnership] I understand I am not entitled to be issued with a licence if I do not have the entitlement to live and work in the UK (or if I am subject to a condition preventing me from doing work relating to the carrying on of a licensable activity) and that my licence will become invalid if I cease to be entitled to live and work in the UK (please read guidance note 15). • The DPS named in this application form is entitled to work in the UK (and is not subject to conditions preventing him or her from doing work relating to a licensable activity) and I have seen a copy of his or her proof of entitlement to work, or have conducted an online right to work check using the Home Office online right to work checking service which confirmed their right to work (please see note 15)
Signature	[redacted]
Date	12th March 2021
Capacity	SOLICITOR

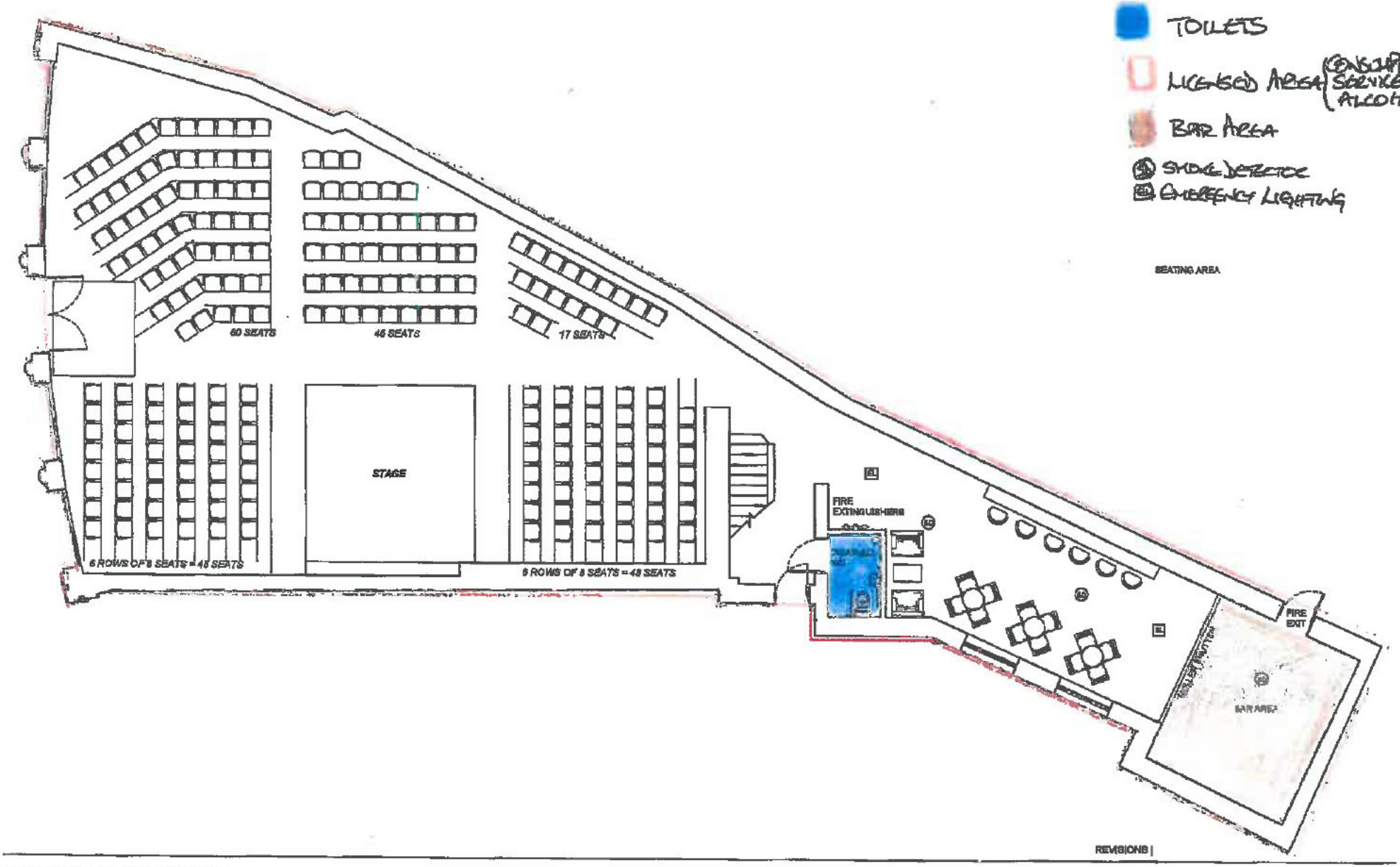
For joint applications, signature of 2nd applicant or 2nd applicant's solicitor or other authorised agent (please read guidance note 13). **If signing on behalf of the applicant, please state in what capacity.**

Signature	
Date	
Capacity	

Contact name (where not previously given) and postal address for correspondence associated with this application (please read guidance note 14)			
Paris Smith LLP 1 London Road Southampton			
Post town		Postcode	SO15 2AE
Telephone number (if any)	[redacted]		
If you would prefer us to correspond with you by e-mail, your e-mail address (optional)			
[redacted]			

Notes for Guidance

1. Describe the premises, for example the type of premises, its general situation and layout and any other information which could be relevant to the licensing objectives. Where your application includes off-supplies of alcohol and you intend to provide a place for consumption of these off-supplies, you must include a description of where the place will be and its proximity to the premises.
2. In terms of specific regulated entertainments please note that:
   - Plays: no licence is required for performances between 08.00 and 23.00 on any day, provided that the audience does not exceed 500.
   - Films: no licence is required for 'not-for-profit' film exhibition held in community premises between 08.00 and 23.00 on any day provided that the audience does not exceed 500 and the organiser (a) gets consent to the screening from a person who is responsible for the premises; and (b) ensures that each such screening abides by age classification ratings.
   - Indoor sporting events: no licence is required for performances between 08.00 and 23.00 on any day, provided that the audience does not exceed 1000.
   - Boxing or Wrestling Entertainment: no licence is required for a contest, exhibition or display of Greco-Roman wrestling, or freestyle wrestling between 08.00 and 23.00 on any day, provided that the audience does not exceed 1000. Combined fighting sports - defined as a contest, exhibition or display which combines boxing or wrestling with one or more martial arts - are licensable as a boxing or wrestling entertainment rather than an indoor sporting event.
   - Live music: no licence permission is required for:
     - a performance of unamplified live music between 08.00 and 23.00 on any day, on any premises.
     - a performance of amplified live music between 08.00 and 23.00 on any day on premises authorised to sell alcohol for consumption on those premises, provided that the audience does not exceed 500.
     - a performance of amplified live music between 08.00 and 23.00 on any day, in a workplace that is not licensed to sell alcohol on those premises, provided that the audience does not exceed 500.
     - a performance of amplified live music between 08.00 and 23.00 on any day, in a church hall, village hall, community hall, or other similar community premises, that is not licensed by a premises licence to sell alcohol, provided that (a) the audience does not exceed 500, and (b) the organiser gets consent for the performance from a person who is responsible for the premises.
     - a performance of amplified live music between 08.00 and 23.00 on any day, at the non-residential premises of (i) a local authority, or (ii) a school, or (iii) a hospital, provided that (a) the audience does not exceed 500, and (b) the organiser gets consent for the performance on the relevant premises from: (i) the local authority concerned, or (ii) the school or (iii) the health care provider for the hospital.



022

REVISIONS |

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Stanley House | 2-4 Cross Road | Wimbledon | London | SW19 8HX
t. 07956 622228 e. contact@stanleyhouse.co.uk w. www.stanleyhouse.co.uk

1:100

0 2m 4m 6m 8m 10m

JOB | 1 MANOR FARM ROAD

DWG | Proposed Floor Plans (Bar Area)

S | 1:100 @ A3 D | NOV 20 No. | D02

proposed first floor plan
[no change]

OPERATING SCHEDULE

1 MANOR FARM ROAD

Background

The application in respect of premises located at 1 Manor Farm Road, Southampton. The premises are in the process of being converted into facilities to be used as a Persian Cultural Centre. It is intended that this will be a community hub for the local Persian community, and will have the benefits of an alcohol and late night refreshment licence. It is anticipated that the premises will be used mainly for the local community as a place to meet, discuss and relax. It is also envisaged that the premises will be used for wider events to which general members of the public will be invited or able to attend.

The relevant licensable activities to be considered on the premises and the intended times

These are as shown in detail in the application for the premises licence.

The times during which it is proposed that the relevant licensable activities are to take place

Alcohol will be supplied on the mandatory conditions imposed by local authority in respect of the premises licence by Southampton City Council. Alcohol will be sold from the main bar area in accordance with the plans attached to the application. It is anticipated that the licence will provide for on sales of alcohol only, and no off sales, to patrons of the cultural centre and/or guests or members of the public when a specified event is to be taking place. Alcohol is to be supplied between the hours contained in the licensing application.

Regulated entertainment is by way of recorded and life music, and the performance of theatre and/or dance. The premises licence will also require late night refreshment for the premises as set out in the application.

Any other times when the premises are open to members of the public

Whilst the premises are aimed as operating as a Persian Cultural Centre, it is not envisaged that there will be a membership of the centre, rather being available throughout the community.

However it is envisaged that the premises will be open to members of the Persian Community within Southampton.

It is anticipated that the premises will not open before 1000 hours in the morning, and it is not proposed that alcohol will be sold until the hours claimed for in the licensing application.

Where licensable activities include the supply of alcohol the name and address of the individual specified as designated premises supervisor.

The applicant is seeking a grant of a premises licence and the designated premises supervisor will be in accordance with the details provided in the licensing application.

Where licensable activities include the supply of alcohol whether alcohol will be supplied for consumption on or off the premises

The application provides for consumption on the premises and it is not proposed that there will be any off sales.

The steps which the applicant proposes to take to promote the licensing objectives

The premises will have a CCTV system installed which will be of the appropriate standard at the time the licence is granted as required by Hampshire Constabulary. There will be individuals on the premises who have the ability to undertake a download of the material for the benefit of the Police should the same be required. A Challenge 25 policy will be in place for persons intending to purchase alcohol although the relevant licensing laws in the event of table meals will be applied. A refusals book which will be kept which will detail numbers, dates and times of those persons refused service along with a description and the

reasons why. An incident book will also remain on the premises at all times and will be available to the responsible authorities on request. Such book will provide details in accordance with the requirements of Hampshire Constabulary. Any training of members of staff will be recorded and the same will be signed and dated by a member of staff and such training will be in accordance with the requirements of Hampshire Constabulary. Given the aim of the premises, it is not envisaged that security staff will be employed at the premises, as and unless a function is open to the wider general public.

Dated this 12 day of March 2021

.....

Paris Smith LLP

Michelle Medley

From: Cliff Morris
Sent: 26 January 2021 09:27
To: Michelle Medley
Subject: FW: Licensing - 1 Manor Farm Road - Persian Cultural Society

From:
Sent: 26 January 2021 09:18
To: Cliff Morris
Subject: RE: Licensing - 1 Manor Farm Road - Persian Cultural Society

CAUTION: This email originated from outside of the organisation. Do not click links or open attachments unless you recognise the sender and know the content is safe.

Greetings Cliff,

I have now had chance to read the draft application in full.

I have looked into the surrounding area and note that there is an element of Crime & Disorder and ASB in the general area. Bearing these in mind and reading into what has been suggested on the application the only thing I would like to suggest would be the wordings of those and the addition of the Risk Assessment for security

Can we agree the following wordings:

CCTV
A colour recording CCTV system that captures images from the main public areas must be fully operational whilst licensable activities are taking place.
The system shall be able to cope with all levels of illumination.
The recording equipment shall be stored and operated in a secure environment with limited access, to avoid damage, theft, unauthorised viewing and maintain the integrity of the system.
The system shall be serviced at twelve monthly intervals and maintained to a standard that is acceptable to the police licensing department responsible for the area.
The system clock shall be checked regularly for accuracy taking account of GMT and BST.
Digital systems shall have sufficient storage capacity for 28 days evidential quality recordings (minimum 4 frames per second).
The images produced shall be date and time stamped.
A notice shall be displayed at the entrance to the premises advising that CCTV is in operation.
An additional recording CCTV camera shall be installed and fully operational whilst the venue is open to the public to cover the area immediately outside the front of the premises.
It is important that the Police are able to access data from the systems quickly and easily and therefore provision shall be made that at all times a person is in attendance who is nominated by the data controller who has access to the secure area who is able to operate the equipment
Ensure all operators receive training from the installer when equipment is installed and that this is cascaded down to new members of nominated staff.
Have a simple operator's manual available to assist in replaying and exporting data (particularly important with digital systems) and to produce images to the police responsible authority for the purpose of the prevention and detection of crime as long as the request is lawful and complies with the GDPR
In the event of a technical failure of the CCTV equipment, the premises licence holder or DPS shall notify the police licensing department responsible for the area within 24 hours.

The Premises Licence Holder will ensure that a CCTV system is fully compliant with the guidance contained in the Information Commissioner's Office (ICO) guidance document (www.informationcommissioner.gov.uk) regarding installation of CCTV is provided at the premises.

Challenge 25
The premises licence holder shall ensure that a system is in place to ensure that every individual who appears to be under 25 years of age seeking to purchase or be supplied with alcohol at or from the premises, shall produce acceptable means of identification and age confirmation. Acceptable identification shall be a passport, photo driving licence or PASS accredited photo ID. If the person seeking alcohol is unable to produce acceptable means of identification, no sale or supply of alcohol will be made to or for that person.

Incident Book
An incident book shall be maintained to record any activity of a violent, criminal or anti-social nature.
The record will contain the time and date, the nature of the incident, the people involved, the action taken and details of the person responsible for the management of the premises at the time of the incident. This record shall be produced to a police officer or an authorised officer of the local authority on reasonable request. This record shall be retained for a period of 12 months.

Refusals Book

A written log shall be kept of all refusals including refusals to sell alcohol. The Premises Licence Holder shall ensure that the refusals log is checked, signed and dated on a weekly basis by the venue manager/manageress. The refusals log will be kept and maintained at the premises and will be available for inspection immediately upon request by Hampshire Constabulary and any responsible authority. The record of refusals will be retained for 12 months.

SIA
The premises licence holder shall ensure that all public and private events or functions are subject to a written Risk Assessment in relation to security requirements that shall include the date, times, size and nature of the event, the assessment of risk and the measures put in place to address any identified risks. All Risk Assessments shall be documented and retained for a minimum of 1 year and shall be made available for inspection by Police and Council officials upon request

From: [redacted]
To: [redacted]
Subject: FW: New Application - Persian Cultural Centre I Manor Farm Road Bitterne SO18 1NN
Date: 15 March 2021 10:02:35
Attachments: image005.jpg
image008.jpg
image009.jpg
image010.jpg
image011.jpg
image012.jpg
image013.jpg
image014.jpg
Letter & Premises Licence Application to Soton Council 12.3.2021.pdf

---

Dear Licensing
The offered conditions attached to the application within my email dated 26/01/2021 have been agreed with me pre application as suggested within the 182 guidance. As such, if you are minded to grant the licence please copy them verbatim.
Kind regards
Mark

PC 25491 Mark HAWLEY
Licensing Officer
Licensing & Alcohol Harm Reduction Team
Southampton Central Neighbourhood Police Office
Southampton City Council
Civic Centre
Southampton
SO14 7LY
[redacted]

VICTIM ADVICE
Victim Clinic - Understanding the support you can expect.
Victim Personal statement Leaflet - A guide explaining the purpose of a personal statement.
Victim Support Link - This charity Is a free and confidential provider of support to help victims move beyond the impact of crime.
Restorative Justice Link - This is an opportunity to speak face to face with the offender to ask questions or explain how it has affected you.

From: Licensing & Alcohol Harm Reduction Team Mailbox <licensing@hampshire.pnn.police.uk>
Sent: 12 March 2021 14:01
To: Hawley Mark 2549 [redacted]k>
Subject: FW: New Application - Persian Cultural Centre I Manor Farm Road Bitterne SO18 1NN
Hi Mark
I think you are aware of this application so over to you thanks Bob

From: Licensing <Licensing@southampton.gov.uk>
Sent: 12 March 2021 11:20
To: Licensing & Alcohol Harm Reduction Team Mailbox[redacted] Food Safety[redacted]>; CS Protection Admin[redacted] Trading Standards[redacted]
Planning[redacted]>; Safeguarding Children Licensing[redacted]>; Public Health[redacted]; alcoho[redacted]
Subject: New Application - Persian Cultural Centre I Manor Farm Road Bitterne SO18 1NN
Please find attached the above application
The last date for representation is **09 April 2021**
Please note you may also receive this application in the post in the next few days and that the DPS will be added at a later date.

Tricia Young
Licensing Officer
Please note I am only in the office on Monday Tuesday and Thursday at the present time
Southampton and Eastleigh Licensing Partnership
Southampton City Council
[redacted]
E-mail: licensing@southampton.gov.uk
Web: www.southampton.gov.uk/licensing or www.eastleigh.gov.uk/licensing
Post: Licensing – Southampton City Council
Civic Centre Southampton SO1 7LY

From: Michelle Medley <M[redacted]
Sent: 12 March 2021 09:11
To: Licensing <Licensing@southampton.gov.uk>
Subject: Application for a premises Licence - our client Persian Cultural Centre

CAUTION: This email originated from a non UK Government address. Do not click links or open attachments unless you recognise the sender and know the content is safe.

Dear Sirs
Please see attached letter and application with accompanying documentation which are sent on behalf of Cliff Morris.
Kindly telephone my secretary on 02380 82385 to pay the fee of £190 over the telephone.
Please send all replies to cliff.morris@pearlaissmith.co.uk

Michelle Medley
Secretary to Cliff Morris & Stephen Stafford
Dispute Resolution Department
[redacted]
Fax: 023 80 8 2368
1 London Road, Southampton, SO15 2AE

This email is sent on behalf of Pearl Smith LLP

To reduce risk of Cybercrime, we: (i) will never provide client account details in the body of an email, or by attachment, unless by secure means (Mail lock); (ii) will provide office account/bill payment details by PDF attachment. Telephone us to verify bank details before making payment. Please DO NOT transfer any money to any account not identified by this process. We do not accept responsibility or payment made in error to third parties.

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Our Privacy Policy (http://www.southampton.gov.uk/privacy) explains how we handle your personal data

****

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****

From: [redacted]
To: Licensing
Subject: RE: New Application - Persian Cultural Centre - 2021/00707/01SPRN
Date: 30 March 2021 19:18:39
Attachments: IMG_0480.jpg
IMG_0481.jpg

CAUTION: This email originated from a non UK Government address. Do not click links or open attachments unless you recognise the sender and know the content is safe.

Hi Tricia
Following the email trail below, I would like to formalise my objection to the licencing application made by the Persian Cultural Centre at 1 Manor Farm Road. They will be using the roof top to create an outdoor entertainment area which will be accessible from the back of the building which is in direct view to our back garden and raised terrace as shown in the attached pictures. The area is in a large residential area where properties are close together. Our back garden is directly exposed and in view to the roof top and the back of their building and I am really concerned about the level of noise their entertainment and the use of alcohol will bring to the privacy and enjoyment of my own back garden but also my neighbour's gardens. I currently hear the builders voices very clearly most of the days while building and there only 3 of them so I could only imagine the noise level and disturbance a larger group of people speaking, dancing on loud (live or recording) music and drinking alcohol would bring to the area. I also understand that late nights are considered till midnight on Fridays and Saturdays which would be a nuisance to my family and my children's sleep and rather disturbing.
Could you therefore please take this email as my representation to this licencing application.
I shall look forward to hearing from you.
Kind regards
Marie Batt-Delannoy
[redacted]

From: Young, Tricia [redacted] **On Behalf Of** Licensing
Sent: 22 March 2021 16:58
To: Marie Batt-Delannoy
Subject: New Application - Persian Cultural Centre - 2021/00707/01SPRN

Ms Batt-Delannoy

Application for a Premises Licence – Persian Cultural Centre

1 Manor Farm Road Bitterne SO18 1NN

I refer to your recent email seeking to make representations to the above application under the Licensing Act 2003.
Having carefully considered your email, it does not appear to be a "relevant representation" within the meaning of the Act because:
Your representation does not contain information about the likely effect of the grant of this premises licence on the promotion of the statutory licensing objectives. The points raised in your objection are about a planning application and would need to be addressed to planning@southampton.gov.uk
In the circumstances, unless you can provide further information to clarify the position I am unable to accept your email as a representation which is capable of being considered by the Council in determining this application.
I will be in the office tomorrow if you would like me to explain further.

Tricia Young
Licensing Officer
Please note I am only in the office on Monday, Tuesday and Thursday at the present time
Southampton and Eastleigh Licensing Partnership
Southampton City Council

[redacted]
E-mail: licensing@southampton.gov.uk
Web: www.southampton.gov.uk/licensing or www.eastleigh.gov.uk/licensing
Post: Licensing – Southampton City Council
Civic Centre Southampton SO14 7LY

From: Marie Batt-Delannoy [redacted]
Sent: 19 March 2021 09:04
To: Licensing <Licensing@southampton.gov.uk>
Subject: 1 Manor Farm Road SO18 1NN Application/ Objection
Importance: High

CAUTION: This email originated from a non UK Government address. Do not click links or open attachments unless you recognise the sender and know the content is safe.

Dear Sir, Madam,

My name is Marie Batt-Delannoy and I live at 12 St Catherine's Road in Southampton, SO18 1 LJ. The back of my house faces the Bitterne Triangle and therefore the back of the building at 1 Manor Farm Road, SO18 1NN. We noticed over the last few weeks that the builders are constructing a building on the roof. However, referring to the online planning application Reference 20/00802/FUL (alternative reference 27048) 'Change of use from restaurant to a community/cultural centre (class D1/D2)' the application only approved the inside alteration of the building and NOT the roof.

https://planningpublicaccess.southampton.gov.uk/online-applications/applicationDetails.do?keyVal=QCFHC7OZMOO00&activeTab=summary

We (and our neighbourhood) are very concerned about this project as we noticed a paper on the building window showing a notice for an application for the grant of a premises licence which would include alcohol. I have attached some pictures evidence of the roof work undertaken and the window notice for licence.

How can we and our neighbourhood not have been notified of these plans as it will have a major impact in our surrounding and tranquillity of life: the noise, the smoke, the view overlooking to our own terrace, parking onto our own road already busy, etc will be major disturbances to our lives. I have contacted the planning department and made them aware of this and asked them to check the building site against the permission granted. **But for the purpose of this email, we would like to object to the licence been granted for the sale of alcohol outside of this promise and certainly object for the use and sale of alcohol on the Roof top** which I was told by one of the builder on site that it will be a 'party' area (bar and terrace),

Could you please take this email as an objection/ complaint to this project/licence. I shall look forward to hearing from you with further details and explanation.

Kind regards

Marie Batt-Delannoy

[redacted]

Virus-free. www.avast.com

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From: [redacted]
To: Licensing
Subject: Re: objection of the licensing application for 1 Manor Farm Road Southampton so18 1NN
Date: 21 March 2021 17:31:08

CAUTION: This email originated from a non UK Government address. Do not click links or open attachments unless you recognise the sender and know the content is safe.

Dear Hayley,
thank your your response, my address is 8 St Catherines Road , SO18 1LJ. i wish to object as currently the developer is creating an outdoor space on the flat roof and lower area to the rear which the use of will cause noise nuisance to myself and the many surrounding residential dwellings. I can easily hear conversations between the two or three workmen that are currently working at the property so can only imagine the level of noise when there are considerably larger groups of people who are likely to have been drinking alcohol as well as the addition of live and recorded music. The position of the property is in a large residential area and does not lend itself to use in this way, being that noise will carry to peoples gardens and their properties and I believe will effect the enjoyment of mine and their homes. The late night aspect of the application causes concern in the affect it will have on sleep with the high probability of disturbance when the noise levels are high with the outdoor facilities are being accessed.
I am not adverse to provision of a license for indoor use only as it is only the use of the building externally and the associated unacceptable noise nuisance that I object to.
Yours sincerely ,
Joanne Cowling

> On 17 Mar 2021, at 16:49, Licensing <Licensing@southampton.gov.uk> wrote:
>
> Good afternoon,
>
> - Thank you for your email below, unfortunately the Licensing Act 2003 requires that representations include your full address so it is currently 'invalid'. Although you mention an increase in noise levels you may wish to expand on this comment and set t the likely effects granting this application would have on the prevention of noise nuisance (one of the licensing objectives). Further information on representations can be found here: http://www.southampton.gov.uk/business-licensing/licensing/licensing-act-2003/la03-reps.aspx
>
> Please note the consultation period runs until 12th April 2021 and you have until then to resubmit any representation you wish to make.
>
> Kind regards,
> Hayley Montague
> Licensing Enforcement Officer
> Southampton and Eastleigh Licensing Partnership
> **Southampton City Council**
>
> Tele: [redacted]
> E-mail: [redacted]
> Web: www.southampton.gov.uk/licensing
> Post: Licensing - Southampton City Council
> PO Box 1767, Southampton. SO18 9LA
>
> Please note:- This email is confidential but may have to be disclosed under the

Freedom of Information Act 2000, the Data Protection Act 1998 or the Environmental Information Regulations 2004. SCC does not make legally binding agreements or accept formal notices/proceedings by email. Emails may be monitored. This e-mail (and its attachments) is intended only for the use of the person(s) to whom it is addressed and may contain information which is privileged and/or confidential. If it has come to you in error you must take no action based on it, nor must you copy or show it to anyone.

From: sportyjojo <[redacted]>
Sent: 17 March 2021 14:48
To: Licensing <Licensing@southampton.gov.uk>
Subject: FW: re licensing application for 1 Manor Farm Road Southampton so18 1NN

CAUTION: This email originated from a non UK Government address. Do not click links or open attachments unless you recognise the sender and know the content is safe.

Sent from my Galaxy

-------- Original message --------
From: sportyjojo <[redacted]
Date: 17/03/2021 11:14 (GMT+00:00)
To: licensing@southamton.gov.uk
Subject: re licensing application for

To whom it may concern, I am writing regarding the above application and wish to raise concerns about the potential effects granting of the license and in particular the late night aspect could have on the local residents.
My property backs on to the venue as do many others and I would expect an increased level of noise and light pollution should a license be granted.

I recently reviewed the plans for the development and have raised separate concerns with planning enforcement as there appears to be alteration of the external aspect to include an outdoor roof space and lower ground to the rear with handrails and a platform. These alterations are not part of the approved planning permission. If they were to be used for outdoor drinking this would detrimentally effect my enjoyment of the garden and disturb my sleep.

I would not have concerns if the license was granted for indoor use only.

I attach photos taken from my property to show the proximity and the outdoor area the developers are creating.

Yours faithfully,
Joanne Cowling

Sent from my Galaxy

From: [redacted]
To: Young, Tricia
Subject: Re: New Application - Persian Cultural Centre - 2021/00707/01SPRN
Date: 01 April 2021 09:03:50

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Morning Tricia

I am sorry, we are 16 St Catherine's Road, So181lj.

Many Thanks

Tim

On Thu, 1 Apr 2021 at 07:52, Young, Tricia <Tricia.Young@southampton.gov.uk> wrote:

> Mr Muckart
>
> **Application for a Premises Licence – Persian Cultural Centre**
>
> **1 Manor Farm Road Bitterne SO18 1NN**
>
> I refer to your recent email seeking to make representations to the above application under the Licensing Act 2003.
>
> Having carefully considered your email, it does not appear to be a "relevant representation" within the meaning of the Act because:
>
> **You have not provided your address**
>
> In the circumstances, unless you can provide further information to clarify the position I am unable to accept your email as a representation which is capable of being considered by the Council in determining this application. The last date for representation is 12 April 2021
>
> Kind regards
>
> Tricia Young
>
> Licensing Officer
>
> Please note I am only in the office on Monday, Tuesday and Thursday at the present time
>
> **Southampton and Eastleigh Licensing Partnership**
>
> **Southampton City Council**
>
> [redacted]
>
> [redacted]
>
> E-mail: licensing@southampton.gov.uk

Web: www.southampton.gov.uk/licensing or www.eastleigh.gov.uk/licensing

Post: Licensing – Southampton City Council

Civic Centre Southampton SO14 7LY

From: Tim Muckart [redacted]
Sent: 31 March 2021 10:50
To: Young, Tricia [redacted]>
Subject: New Application - Persian Cultural Centre - 2021/00707/01SPRN

CAUTION: This email originated from a non UK Government address. Do not click links or open attachments unless you recognise the sender and know the content is safe.

Good morning Tricia,

Please let me know if I should send this to someone else.

I have seen that the Persian Cultural Centre at 1 Manor Farm Road, has requested a license from yourselves.

I would like to formally object, the outside space that is intended to be used for outside entertainment overlooks my garden.

This is a family area, with multiple houses that either back onto the proposed outside entertainment space or is very close and overlooked by it, my issue is the noise and the bad behaviour that could come from serving alcohol, plus the potential for music to be heard.

The noise from such a space would cause a significant nuisance to the private residential gardens in the area, I am concerned that the noise will disrupt sleep and the wellbeing of my family and have the potential to affect the mental wellbeing of my family and others in the area.

Please take this email as my representation to this licencing application.

Regards,

Tim Muckart

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Procedure – Applications etc. under the Licensing Act 2003 or Gambling Act 2005

1. A hearing will be held to decide applications, etc., under the Licensing Act 2003, where there have been relevant representations from one or more of the responsible authorities or other persons. The parties to the hearing will have the chance to be heard. They are also entitled to be helped or represented by another person if due written notice is given in advance.
2. Hearings will take place before a Sub-Committee comprising three members of the Licensing Committee. One of these members will be elected Chair of the Sub-Committee for that hearing.
3. Please note that for day time hearings the Sub-Committee will normally adjourn for lunch at 1:00 p.m. and that comfort breaks will be taken at the discretion of the Chair at appropriate points during the meeting.

Preliminary matters

4. The Chair will introduce those present.
5. The Chair will check whether any of the Sub-Committee members has a "disclosable pecuniary", "personal" or "pecuniary" interest.
6. The Chair will check whether all the parties are present at the hearing, and if any are not, whether they have told the Council that they do not wish to attend or be represented. If any party who was expected to attend has not done so, the Sub- Committee will decide whether to hold the hearing in that party's absence, or to adjourn it to another date. Hearings will be adjourned if the Sub-Committee considers this necessary in the public interest, if that is possible. If the Sub-Committee decides to hold the hearing in a party's absence, they will still consider any written information received.
7. In the case of an application for variation or a new licence, the Sub-Committee's legal advisor will ask the applicant or their advisor for confirmation that the required public notices have been displayed where they can conveniently be read from the exterior of the premises and that notice was given in a local newspaper within eleven working days of the day on which the application was received by the licensing authority.
8. Normally, hearings will be open to the public. However, the Sub-Committee may exclude the public from the hearing (or part of it) if they think the public interest in doing so outweighs the public interest in having the hearing in public. If the public are excluded, any of the parties to the hearing, and/or anyone helping or representing them, may also be excluded.
9. The Chair will propose a motion that the public and the press be excluded from the hearing while the Sub-Committee considers the matter. Ordinarily the legal advisor and democratic support officer will remain (see paragraph 30 (b) below).
10. The Openness of Local Government Bodies Regulations 2014 provide an entitlement for the public to film, photograph and audibly record ("record") public meetings. However, by virtue of Schedule 6, paragraph 58 of the Licensing Act 2003 and section 101 (15) of the Local Government Act 1972, Licensing Act 2003 hearings are not covered by the entitlement to film as of right. The Council's general approach is to encourage openness and transparency in all its dealings and the general presumption is that filming or recording of hearings shall generally be permitted where due notice has been provided in advance of the hearing. Nonetheless the following shall apply:

i) Filming / recording / photographing hearings shall only be permitted with the express permission of the Chair. Such permission may include restrictions to protect children, vulnerable persons or others that object to being filmed / photographed / recorded.

ii) Requests to film / record / photograph should be made with sufficient notice in advance of the hearing. Late requests may not be granted if there shall be a delay to proceedings as a result.

iii) Every party to the hearing and any witnesses shall have the opportunity to object and those representations shall be considered by the Sub-Committee.

iv) No filming, photography or sound recording shall be permitted of any person under 18 years of age.

v) No person shall be put under any pressure to consent to such and no payment for such consent shall be given.

vi) The Chair shall have the final say as to whether any filming, photography or recording is allowed (including the extent to which permission is granted e.g. the parts of the meeting, the individuals concerned or the arrangement of the recording equipment).

vii) All directions given by the Chair shall be fully complied with and the Chair shall have the absolute discretion to withdraw permission to film, photograph or record in the event the same causes an obstruction or interferes with the general conduct of the hearing, including the impeding of the giving of proper evidence.

11. A party may have asked for someone else to appear at the hearing to make a point or points that may help the Sub-Committee reach a decision. It is up to the Sub-Committee to decide whether that person should be heard, although permission will not be refused unreasonably. Such a person is referred to as a "witness" in this procedure.

12. Where application has been made, in advance of the hearing, that it should be conducted in private (e.g. by the Police in review or summary review proceedings) reports shall be prepared and presented as confidential so that the Committee can make a meaningful determination in accordance with Regulation 14 of the Licensing Act 2003 (Hearings) Regulations 2005 to exclude the press and public. It is important to note that reports presenting Licensing Act 2003 matters are not required to be published in advance. However, certain limited information must be published in accordance with the Licensing Act 2003 (Licensing Authority's Register) (Other Information) Regulations 2005 and section 8 of the Licensing Act 2003.

13. The Chair will then explain the procedure that will follow.

General information on the conduct of the hearing

14. Each party is entitled to:

(a) Give further information in response to any point that the Council told them before the hearing they would like clarified;

(b) With the permission of the Chair, seek clarification on any point by any other party;

(c) Address the Sub-Committee.

15. Members of the Sub-Committee may also seek clarification of any party or witness.

16. At the Chair's discretion, the Sub-Committee's legal advisor may ask any questions he or she thinks are relevant.

17. Unless the Council has requested in advance that a particular point be clarified, new documentary or other evidence may not be submitted for the first time at the hearing, unless all the other parties agree.

18. Members of the Sub-Committee will have read all the papers included in the agenda for the hearing before the hearing starts. The parties are requested not to spend unnecessary time repeating evidence which is already in the papers and which is not disputed.

19. Evidence that is not relevant to the case, or to the promotion of the four licensing objectives, will be disregarded.

Hearing Procedure

20. If any party has asked permission for a witness or witnesses to appear, the Sub-Committee will decide whether they should be heard (see paragraph 10 above).

21. All parties will be allowed a similar (and maximum) amount of time to put their case, and ask questions of other parties, subject to the Chair's discretion to not hear repetitive matters or questions.

The applicant

22. The applicant for the licence (or their representative) or the applicant in review proceedings, may present their case.

23. If the Sub-Committee permits, the applicant may call those witnesses whose names have been provided in advance to support their application.

24. Where a group of witnesses wish to speak in support of the application for similar reasons, one person should, where possible, act as spokesperson for the whole group. The Sub-Committee may reasonably refuse permission for a witness to be heard if their evidence simply repeats points already made.

25. The Chair will invite those making representations to seek clarification on any point made by the applicant. The Chair will decide in which order those making representations will be invited to put their questions.

26. Members of the Sub-Committee or the Legal Advisor, if so permitted by the Chair, may also seek clarification of the applicant or any of their witnesses.

The representations

27. Where there is more than one person making a representation, the Chair will decide the order in which they may put their case. If there is a representation from one or more of the responsible authorities, their representatives will normally be invited to put their case first.

28. The following procedure will apply to each person making a representation in turn:-

    (a) The person making a representation (or their representative) may present their case.

    (b) If the Sub-Committee permits, the person making a representation may call those witnesses whose names have been provided in advance to support their objection.

    (c) Where a group of witnesses wish to speak in support of the objection for similar reasons, where possible, one person should act as spokesperson for the whole group. The Sub-Committee may reasonably refuse permission for a witness to be heard if their evidence simply repeats points already made.

(d) The Chair will invite the applicant to seek clarification on any points made by those making representations.

(e) Members of the Sub-Committee or the Legal Advisor, if so permitted by the Chair, may seek clarification of those making representations or any witnesses.

Summing up

29. The Chair will invite each person making a representation to make a final statement or sum up their case.

30. The Chair will invite the applicant to make a final statement or sum up their case.

Sub-Committee's decision

31.

(a) At the end of the hearing the Sub-Committee will move to private session whilst it considers the matter.

(b) The Sub-Committee's legal advisor will remain to provide legal advice and the democratic services officer will remain to record the decision. Details of any legal advice will be recorded and referenced in the decision and reasons.

(c) The parties will be invited to wait to be informed of the outcome.

(d) As soon as the decision is reached, the public and press will be invited to return to the room in which the hearing took place, and the Chair will announce the decision and the reasons for it.

(e) If a room is available, the Committee may retire to deliberate and make its decision

(f) All parties will be formally notified in writing of the decision and reasons as soon as possible.

In most cases the Sub-Committee will announce the decision at the conclusion of the hearing. In certain cases where this is not possible due to time constraints (and the Hearings Regulations permit – Regulation 26 (1) sets out those hearings where delay is not possible) the decision shall be made within 5 working days beginning with the day of the hearing or the last day of the hearing.